

26TRCV02124 26TRCV02124

County: los-angeles

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Case Number: 26TRCV02124 Hearing Date: September 8, 2026 Dept: M

LOS ANGELES SUPERIOR COURT –
SOUTHWEST DISTRICT

Honorable Amy N. Carter Tuesday,
September 8, 2026

Department M Calendar No.

PROCEEDINGS

Wylette

Miller v. General Motors, LLC, et al.

26TRCV02124

1. Wylette

Miller's Demurrer to Answer

TENTATIVE RULING

Wylette

Miller's Demurrer to Answer is sustained with 20 days leave to amend.

Background

Plaintiff filed the Complaint on June 12, 2026. Plaintiff alleges the following facts. This is an action under the Song-Beverly Act regarding a defective 2025 Buick Envista.

Meet and Confer

Plaintiff set forth a meet and confer declaration in sufficient compliance with CCP § 430.41. (Decl., Astrid Souto, ¶¶ 3-4.)

Demurrer

A demurrer tests the sufficiency of a complaint as a matter of law and raises only questions of law. (Schmidt v. Foundation Health (1995) 35 Cal.App.4th 1702, 1706.) In testing the sufficiency of the complaint, the court must assume the truth of (1) the properly pleaded factual allegations; (2) facts that can be reasonably inferred from those expressly pleaded; and (3) judicially noticed matters. (Blank v. Kirwan (1985) 39 Cal.3d 311, 318.) The Court may not consider contentions, deductions, or conclusions of fact or law. (Moore v. Conliffe (1994) 7 Cal.App.4th 634, 638.) Because a demurrer tests the legal sufficiency of a complaint, the plaintiff must show that the complaint alleges facts sufficient to establish every element of each cause of action. (Rakestraw v. California Physicians Service (2000) 81 Cal.App.4th 39, 43.) Where the complaint fails to state facts sufficient to constitute a cause of action, courts should sustain the demurrer. (C.C.P., § 430.10(e); Zelig v. County of Los Angeles (2002) 27 Cal.App.4th 1112, 1126.)

Sufficient facts are the essential facts of the case "with reasonable precision and with particularity sufficiently specific to acquaint the defendant with the nature, source, and extent of his cause of action." (Gressley v. Williams (1961) 193 Cal.App.2d 636, 643-644.) "Whether the plaintiff will be able to prove the pleaded facts is irrelevant to ruling upon the demurrer." (Stevens v. Superior Court (1986) 180 Cal.App.3d 605, 609-610.) Under Code Civil Procedure § 430.10(f), a demurrer may also be sustained if a complaint is "uncertain." Uncertainty exists where a complaint's factual allegations are so confusing they do not sufficiently apprise a defendant of the issues it is being asked to meet. (Williams v. Beechnut Nutrition Corp. (1986) 185 Cal.App.3d 135, 139, fn. 2.)

A demurrer to an Answer challenges the sufficiency of the factual allegations of the Answer. A

defendant must plead ultimate facts rather than conclusions to state viable affirmative defenses. The allegations must be "averred as carefully and with as much detail as the facts which constitute the cause of action and are alleged in the complaint." *FPI Development, Inc. v. Nakashima* (1991) 231 Cal.App.3d 367, 384.

Plaintiff demurs to
the following affirmative defenses on the following grounds:

"1. Fourth (4)

Affirmative Defense for Contributory Negligence has, as a matter of law, been abrogated and barred since 1975.

2. Second (2), Third

(3), Sixth (6) through Seventeenth (17), and Nineteenth (19) through Twenty-fourth (24) Affirmative Defenses fail to state facts sufficient to constitute a defense in violation of Code of Civil Procedure, Sections 430.20(a) or 431.30(b), or are uncertain under Code of Civil Procedure, Section 430.20(b).

3. Fifth (5)

Affirmative Defense Violates Code of Civil Procedure § 458 or is otherwise barred.

4. Eighteenth (18)

Affirmative Defense is not a Legally Cognizable Affirmative Defense." (Notice of Demurrer, page 2, lines 2-12).

Defendant failed to
file any written opposition to the demurrer.

As to the fourth
affirmative defense, the demurrer is sustained with 20 days leave to amend. In *Li v. Yellow Cab Co.* (1975) 13 Cal.3d 804, the California Supreme Court abrogated the doctrine of contributory negligence, and it was replaced with comparative negligence.

As to the second,
third, sixth through seventeenth, and nineteenth through twenty-fourth
affirmative defenses, the demurrer is sustained with 20 days leave to amend.

Defendant fails to

state sufficient facts to constitute the affirmative defenses. Defendant's affirmative defenses are simply recitations of the types of affirmative defense asserted and a series of conclusions as to Plaintiff's alleged acts which allegedly support the affirmative defenses. No facts to support the conclusions have been stated by Defendant. As noted above, affirmative defenses must be stated with facts with as much detail as those which support causes of action set forth in a Complaint. See *FPI Development, Inc. v. Nakashima* (1991) 231 Cal.App.3d 367, 384.

In addition, many of the conclusions were set forth only on information and belief. "[A party] may allege on information and belief any matters that are not within his personal knowledge, if he has information leading him to believe that the allegations are true and thus a pleading made on information and belief is insufficient if it merely assert[s] the facts so alleged without alleging such information that lead[s] [the plaintiff] to believe that the allegations are true." *Gomes v. Countrywide Home Loans, Inc.* (2011) 192 Cal.App.4th 1149, 1158–1159 (internal citations and quotations are omitted; emphasis in original.) No facts are alleged to support the matters set forth on information and belief.

As to the fifth affirmative defense, the demurrer is sustained with 20 days leave to amend. While, pursuant to CCP § 458, the affirmative defense of statute of limitations may be pled in a conclusory manner, at a minimum, the specific statute and subdivisions, if any, must be set forth. Defendant failed to set forth the subdivision of CCP § 871.21.

As to the eighteenth affirmative defense, the demurrer is sustained with 20 days leave to amend. Defendant did not substantively oppose the demurrer to this affirmative defense which specifically argued that the affirmative defense for Qualified Third-Party Dispute Resolution Process is not a legally cognizable defense under allegedly recognized authority.

Therefore,
Plaintiff's Demurrer to Answer is sustained with 20 days leave to amend.

Plaintiff is ordered
to give notice of this ruling.